

Mallegowda vs Mallegowda on 1 March, 2024

-1-

NC: 2024:KHC:9005
RSA No. 1296 of 2014

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 1ST DAY OF MARCH, 2024

BEFORE

THE HON'BLE MR JUSTICE ASHOK S.KINAGI

REGULAR SECOND APPEAL NO. 1296 OF 2014 (PAR)

BETWEEN:

1. MALLEGOWDA
AGED ABOUT 33 YEARS,
S/O MALLEGOWDA,
2. BASAVARAJU
AGED ABOUT 29 YEARS,
S/O MALLEGOWDA

APPELLANTS No.1 & 2 ARE
R/AT SHIRAMALLI VILLAGE,
KASABA HOBLI, H.D. KOTE TALUK,
MYSORE DISTRICT 571116.

...APPELLANTS

(BY SRI. P NATARAJU, ADVOCATE)

Digitally signed
by R DEEPA
Location: HIGH
COURT OF
KARNATAKA

AND:

1. MALLEGOWDA
AGED ABOUT 68 YEARS,
S/O MADEGOWDA,
2. MALLAMMA
AGED ABOUT 29 YEARS,
D/O MALLEGOWDA,
3. MADEVA
AGED ABOUT 29 YEARS,
S/O MALLEGOWDA,

-2-

NC: 2024:KHC:9005
RSA No. 1296 of 2014

ALL ARE R/AT SHIRAMALLI VILLAGE,
KASABA HOBLI,
H.D.KOTE TALUK,
MYSORE DISTRICT 571116

. . .RESPONDENTS

(BY SRI. MURUGESH V. CHARATI, ADVOCATE FOR
SRI. MANJESH H.M., ADVOCATE)

THIS RSA IS FILED UNDER SEC.100 OF CPC., AGAINST
THE JUDGMENT AND DECREE DATED 06.03.2014 PASSED IN
R.A.NO.71/2012 ON THE FILE OF THE SENIOR CIVIL JUDGE,
HUNSUR, DISMISSING THE APPEAL AND CONFIRMING THE
JUDGMENT AND DECREE DATED 19.06.2012 PASSED IN
O.S.NO.134/2008 ON THE FILE OF CIVIL JUDGE, H.D.KOTE.

THIS APPEAL, COMING ON FOR ORDERS, THIS DAY, THE
COURT DELIVERED THE FOLLOWING:

JUDGMENT

This second appeal is filed by the appellants challenging the judgment and decree dated 06.03.2014, passed in R.A.No.71/2012 by the Senior Civil Judge, Hunsur, confirming the judgment and decree dated 19.06.2012 passed in O.S.No.134/2008 by the Civil Judge, H.D. Kote.

2. For the sake of convenience, parties are referred to as per their ranking before the trial Court. The NC: 2024:KHC:9005 appellants are the plaintiffs and respondents are the defendants.

3. The brief facts leading rise to filing of this appeal are as under:

Plaintiffs filed a suit for partition and separate possession of 1/5th share in suit schedule properties. One Madegowda was the original propositus. He had a wife by name Mallamma and both of them had 3 sons namely, Mallegowda, Kari gowda , Basavegowda. The 3 sons of Madegowda had divided the self acquired properties and joint family properties of Madegowda and they are living separately with their family. It is contended that defendant No.1 i.e., the Mallegowda s/o Madegowda is the father of plaintiffs and defendant Nos.1 and 2, where, defendant Nos.2 and 3 are the children through his first wife and plaintiff Nos.1 and 2 are children born to him through his second wife. Mother of plaintiffs expired leaving behind the plaintiffs as her legal heirs. The defendant No.1 acquired the properties in the partition NC: 2024:KHC:9005 effected between him and his brothers and he had also purchased some of the properties out of the income derived from the joint family properties. In spite of the division between defendant No.1 and his brothers, revenue entries have not been changed. It is contended that the suit schedule properties are the joint

properties of plaintiffs and defendants and they are the members of Hindu Undivided Joint Family. The defendant No.1 is not cordial with the plaintiffs and he has not given any share in the suit schedule properties to the plaintiffs. It is contended that defendant No.1 had purchased item No.1 out of the income from the joint family. Item No.2 stands in the name of grandmother of the plaintiffs and the said property fell to the share of defendant No.1. Item Nos.3, 4 and 6 are the joint family properties having purchased out of their income of the joint family by defendant No.1. Item Nos.5, 7 to 9 are the ancestral properties and all the properties are in joint possession of plaintiffs and defendants. The plaintiffs demanded for partition and separate possession, but defendant No.1 refused to effect NC: 2024:KHC:9005 partition, hence cause of action arose for the plaintiffs to file a suit for partition and separate possession.

4. Defendants filed written statement admitting the relationship of Madegowda and Mallamma and with the plaintiff. It is contended that Madegowda and his brothers did not have any ancestral properties. Item Nos.2, 7 and 8 are the properties of mother of defendant No.1. She had acquired the properties under the gift from her father and it is her stridhana property and said properties stands in the name of mother of defendant No.1 and it is in her possession. It is contended that defendant No.1 and his brothers are residing separately subsequent to their marriage. The mother of defendant No.1 is residing with her 3rd son Basavegowda. It is contended that defendant No.1 prior to enactment of Land Reforms Act was cultivating the lands of other people under 'vara' and 'guttige' and out of the income derived from the said lands the defendant No.1 purchased item Nos.1, 4, 5 and 6 and they are the self acquired properties of defendant No.1. It NC: 2024:KHC:9005 is further stated that item No.3 was jointly purchased by defendant No.1 along with his brother Basavegowda and they are in joint possession of item No.3 and khata stands in their names jointly. It is denied that defendant No.1 has second wife and plaintiffs are the children of defendant No.1 through his second wife. It is contended that in Shiramalli village there are 40-50 people by name Madegowda. The plaintiffs are mis-utilizing the name and falsely contended that defendant No.1 is their father. It is contended that there is no blood relationship between plaintiffs and defendant No.1 and the plaintiffs have no right to claim a share in the suit schedule properties. Hence, prayed to dismiss the suit.

5. The Trial Court, on the basis of the above said pleadings, framed the following issues:

1. Whether plaintiffs prove that G-Tree furnished by them is true and correct?
2. Whether plaintiffs prove that suit properties are ancestral and joint family properties of themselves and defendants?

NC: 2024:KHC:9005

3. Whether plaintiffs prove that they have 1/5th share each in the suit properties?
4. Whether plaintiffs are entitled to mesne profits?

5. Whether plaintiffs are entitled for the reliefs as prayed?

6. What order or decree?

6. Plaintiffs in order to substantiate the case, plaintiff No.1 was examined as PW-1 and got marked 35 documents as Exs.P1 to P35. Defendant No.1 was examined as DW-1 and got marked 15 documents as Exs.D1 to D15. The trial Court on the assessment of oral and documentary evidence of the parties, answered issue No.1 in the affirmative and other issues are answered in the negative and consequently dismissed the suit of the plaintiffs vide judgment dated 19.06.2012.

7. The plaintiffs aggrieved by the judgment and decree passed in the above said suit, filed an appeal in R.A.No.71/2012 and defendants filed an appeal in R.A.No.73/2012 on the file of Senior civil Judge, Hunsur.

NC: 2024:KHC:9005 The First Appellate Court, after hearing the parties, has framed the following points for consideration:

1. Whether it is proved that plaintiffs are the children of Mallegowda?

2. Whether plaintiffs are entitled for partition and separate possession in respect of the suit schedule properties?

3. Whether the appellants had made out that judgment and decree passed by the trial Court is not based on sound principles of law and the facts and circumstances of the case and the same has to be interfered with?

4. What order?

8. The First Appellate Court, on re-assessment of the oral and documentary evidence, answered point No.1 in the affirmative, point Nos.2 and 3 in the negative and point No.4 as per the final order and consequently dismissed the appeals filed by the plaintiffs and defendants, confirming the judgment and decree passed by the trial Court.

9. The plaintiffs, aggrieved by the judgment and decree passed in R.A.No.71/2012 and judgment and NC: 2024:KHC:9005 decree passed in O.S.No.134/2008, have filed this second appeal.

10. Heard learned counsel for the plaintiffs.

11. Learned counsel for the plaintiffs submits that the courts below have committed an error in passing impugned judgments. He submits that the suit schedule properties are not the joint and ancestral properties of plaintiffs and defendants. The courts below have ignored the oral and documentary evidence produced by the plaintiffs. He also submits that the courts below erred in coming to the conclusion that illegitimate children cannot claim share in a father's property during his life time as per Section 16(3) of Hindu Marriage Act, 1955. The courts below have passed the

impugned judgments on the assumption and presumption and not on the basis of proper appreciation of evidence. Hence, on these grounds prays to allow the appeal.

- 10 -

NC: 2024:KHC:9005

12. Perused the records and considered the submission of learned counsel for the plaintiffs.

13. Plaintiffs in order to substantiate their case examined plaintiff No.1 as PW.1 and he has reiterated plaint averments in the examination-in-chief and produced the documents. Exs.P1 to 7 are the RTCs in respect of suit properties; Ex.P8 is the Assessment register extract; Exs.P9 to 10 are the transfer and study certificates of plaintiff No.2; Exs.P.11 to 13 are the 7th, 10th and PUC marks cards respectively, where, in the said documents the mother's name is shown as Shivamma and father's name is shown as Mallegowda; Exs.P.14 and 15 are the character certificate and identity card issued to plaintiff No.1, where father's name is shown as Mallegowda and village is shown as the saragar; Exs.P16 to 21 are the voters list; Ex.P22 is the document showing the mother of plaintiffs i.e., shivamma had undergone Tubectomy operation on 25.02.1987 under Family welfare scheme; Ex.P23 is the Marriage invitation card; Ex.P24 is the

- 11 -

NC: 2024:KHC:9005 Vivaha Mahotsava Lagnapatrike; Exs.P25 to 27 are the voters identity cards and Exs.P28 to 35 are the photos and negatives. The Courts below considering the documents produced by the plaintiffs had held that primary burden is on the plaintiffs to prove they are entitled for partition and separate possession of suit properties. Once the plaintiffs are able to make out their case the burden shifts on the defendants. The documents produced by the plaintiffs clearly indicates that the father's name of the plaintiffs is Mallegowda and they have admitted that their mother is the second wife of defendant No.1.

14. From the perusal of the records it is clear that plaintiffs are born out of void marriage. In order to consider the case in hand, it is necessary to examine Section 16(3) of Hindu Marriage Act, 1955, which reads as under:

16. Legitimacy of children of void and voidable marriages.

(1) xxx (2) xxx

- 12 -

NC: 2024:KHC:9005 (3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or

acquiring any such rights by reason of his not being the legitimate child of his parents.

15. The children born out of void marriage are not entitle to claim a share during the life time of father. They can claim share only after the death of father in his properties. The Hon'ble Apex Court in the case of REVANASIDDAPPA AND ANOTHER VS. MALLIKARJUN AND OTHERS REPORTED IN CIVIL APPEAL NO.2844/2011 disposed of on 01.09.2023 held in para No.54 which reads as under:

"54. We now formulate our conclusions in the following terms:

- (i) In terms of sub-section (1) of Section 16, a child of a marriage which is null and void under Section 11 is statutorily conferred with legitimacy irrespective of whether
- (i) such a child is born before or after the commencement of Amending

- 13 -

NC: 2024:KHC:9005 Act 1976; (ii) a decree of nullity is granted in respect of that marriage under the Act and the marriage is held to be void otherwise than on a petition under the enactment;

(ii) In terms of sub-section (2) of Section 16 where a voidable marriage has been annulled by a decree of nullity under Section 12, a child 'begotten or conceived' before the decree has been made, is deemed to be their legitimate child notwithstanding the decree, if the child would have been legitimate to the parties to the marriage if a decree of dissolution had been passed instead of a decree of nullity;

(iii) While conferring legitimacy in terms of sub- section (1) on a child born from a void marriage and under sub-section (2) to a child born from a voidable marriage which has been annulled, the legislature has stipulated in sub- section (3) of Section 16 that such a child will have rights to or in the property of the parents and not in the property of any other person;

(iv) While construing the provisions of Section 3(1)(j) of the HSA 1956 including the proviso, the legitimacy which is conferred by Section 16 of the HMA 1955 on a child born from a void or, as the case may be, voidable marriage has to be read into the provisions of the HSA 1956. In other words, a child who is legitimate under sub-section (1) or sub-section (2) of Section 16 of the HMA would, for the purposes of Section 3(1)(j) of the HSA 1956, fall within the ambit of the explanation 'related by legitimate kinship' and cannot be regarded as an 'illegitimate child' for the purposes of the proviso;

(v) Section 6 of the HSA 1956 continues to recognize the institution of a joint Hindu family governed by the Mitakshara law and the concepts of a coparcener, the acquisition of an interest as a

- 14 -

NC: 2024:KHC:9005 coparcener by birth and rights in coparcenary property. By the substitution of Section 6, equal rights have been granted to daughters, in the same manner as sons as indicated by

sub-section (1) of Section 6;

(vi) Section 6 of the HSA 1956 provides for the devolution of interest in coparcenary property. Prior to the substitution of Section 6 with effect from 9 September 2005 by the Amending Act of 2005, Section 6 stipulated the devolution of interest in a Mitakshara coparcenary property of a male Hindu by survivorship on the surviving members of the coparcenary. The exception to devolution by survivorship was where the deceased had left surviving a female relative specified in Class I of the Schedule or a male relative in Class I claiming through a female relative, in which event the interest of the deceased in a Mitakshara coparcenary property would devolve by testamentary or intestate succession and not by survivorship. In terms of sub-section (3) of Section 6 as amended, on a Hindu dying after the commencement of the Amending Act of 2005 his interest in the property of a Joint Hindu family governed by the Mitakshara law will devolve by testamentary or intestate succession, as the case may be, under the enactment and not by survivorship. As a consequence of the substitution of Section 6, the rule of devolution by testamentary or intestate succession of the interest of a deceased Hindu in the property of a Joint Hindu family governed by Mitakshara law has been made the norm;

(vii) Section 8 of the HSA 1956 provides general rules of succession for the devolution of the property of a male Hindu dying intestate. Section 10 provides for the distribution of the property among heirs of Class I of the Schedule. Section 15 stipulates the general rules of succession in the case of female Hindus dying intestate. Section 16

- 15 -

NC: 2024:KHC:9005 provides for the order of succession and the distribution among heirs of a female Hindu;

(viii) While providing for the devolution of the interest of a Hindu in the property of a Joint Hindu family governed by Mitakshara law, dying after the commencement of the Amending Act of 2005 by testamentary or intestate succession, Section 6 (3) lays down a legal fiction namely that 'the coparcenary property shall be deemed to have been divided as if a partition had taken place'. According to the Explanation, the interest of a Hindu Mitakshara coparcener is deemed to be the share in the property that would have been allotted to him if a partition of the property has taken place immediately before his death irrespective of whether or not he is entitled to claim partition;

(ix) For the purpose of ascertaining the interest of a deceased Hindu Mitakshara coparcener, the law mandates the assumption of a state of affairs immediately prior to the death of the coparcener namely, a partition of the coparcenary property between the deceased and other members of the coparcenary. Once the share of the deceased in property that would have been allotted to him if a partition had taken place immediately before his death is ascertained, his heirs including the children who have been conferred with legitimacy under Section 16 of the HMA 1955, will be entitled to their share in the property which would have been allotted to the deceased upon the notional partition, if it had taken place; and

(x) The provisions of the HSA 1956 have to be harmonized with the mandate in Section 16(3) of the HMA 1955 which indicates that a child who is conferred with legitimacy under sub-sections (1) and (2) will not be entitled to rights in or to the property of any person other than the parents. The property of the parent, where the parent had an

- 16 -

NC: 2024:KHC:9005 interest in the property of a Joint Hindu family governed under the Mitakshara law has to be ascertained in terms of the Explanation to sub- section (3), as interpreted above."

16. Admittedly, in the instant case, I held that the plaintiffs are the children born out of void marriage and father is alive. The plaintiffs are not entitle to claim a share during the life time of the father as per Section 16(3) of Hindu Marriage Act. The courts below have concurrently recorded a finding of fact against the plaintiffs. Taking into consideration the law laid down by the Hon'ble Apex Court in the case of REVANASIDDAPPA (supra), I do not find any substantial question of law arises for consideration and error in the impugned judgments.

17. In view of the above discussion, I proceed to pass the following:

ORDER The appeal is dismissed.

- 17 -

NC: 2024:KHC:9005

The judgments and decrees passed
by the courts below are hereby
confirmed.

No order as to the costs.

SD/-
JUDGE

sks